

WHEREAS, Republic Act (RA) No. 11917, otherwise known as "THE PRIVATE SECURITY SERVICES INDUSTRY ACT", lapsed into law on July 30, 2022, in accordance with Article VI, Section 27 (1) of the Constitution;

WHEREAS, Chapter V, Section 17 of RA No. 11917 provides that the Philippine National Police (PNP), in consultation with stakeholders and other national private security associations, representatives of private security cooperatives, and other stakeholders of the security industry, and subject to the provisions of existing laws, shall promulgate the rules and regulations necessary to implement the provisions of this Act within ninety (90) days from its effectivity;

WHEREAS, Chapter V, Section 17 of RA No. 11917 further provides that the Chief, PNP shall consult with the said stakeholders prior to the issuance of all regulations and issuances related to and affecting the private security services industry;

NOW THEN, the Chief, PNP, pursuant to the said mandate of the law, and after due public hearings and consultations, hereby promulgates the following Implementing Rules and Regulations (IRR) to carry out the provisions of the said Act:

BOOK I PRELIMINARY AND GENERAL PROVISIONS

RULE 1 DECLARATION OF POLICY

Section 1. Scope. The organization, operation, business, and activities of Private Security Professionals (PSPs), Private Security Agencies (PSAs), Company Guard Forces (CGFs), Government Security Forces (GSFs), and Private Security Training Agencies (PSTAs) shall be governed by RA No. 11917 and this IRR.

Section 2. Construction and Interpretation. These Rules shall be construed and interpreted in the light of the State policies declared in Chapter I, Section 2, of RA No. 11917, which stipulates that:

"The State recognizes the vital role of the private sector in the protection of the people and safeguarding of property as well as in the maintenance of peace and order in the country. Towards this end, the State shall adopt measures to strengthen the regulation of private security services industry and establish quality standards to ensure competent private security personnel and professionals that complement our law enforcement authorities in the preservation of public order in the country"

RULE 18

INSPECTION REQUIREMENT

Section 48. Pre-Licensing Inspection. A Pre-Licensing Inspection Team composed of at least three (3) personnel led by a Police Commissioned Officer (PCO) and covered by a valid Letter Order issued and signed by Chief, SOSIA shall be designated to inspect the records, documents, equipment, and premises of the PSTA for compliance with the legal, staffing, facilities, and equipment requirements set forth in this IRR, including, but not limited to the following:

1. SEC Certificate of Incorporation;
2. Business Permit;
3. Business Signage;
4. LESP of Operator and 201 File;
5. LESP of Training Staff with Notarized Appointment Orders and 201 File;
6. Proof of Building Ownership or Lease Contract valid for at least one (1) year (at least 100 sqm including classroom);
7. Shooting Range Accreditation from FEO or Memorandum of Agreement (MOA) with FEO-accredited shooting range;
8. Drill Area (Quadrangle) (MOA);
9. Classroom
 - a. 70 sqm for a class of 60 students (movable divider may be applied to smaller classes); or
 - b. 35 sqm for a class of 30 students
10. MOA with private clinic, Neuro Testing Center, and Drug Testing Center;
11. Internet subscription agreement (at least 100 mbps);
12. Operating Guidelines and Procedures Manual (including Program of Instructions, Course Syllabi, and Training Modules);
13. Checklist of Instructional Tools and Equipment (issued by SOSIA);
14. Schedule of fees per course; and
15. Copy of Laws Rules and Regulations governing the PSTA.

Section 49. Conduct of Inspection. The PCO/Team Leader of the Pre-Licensing Inspection Team shall introduce the members to the Training Agency Operator, Director, and other Training Staff possessing LESP prior to the commencement of Inspection. The Pre-Licensing Inspection Team shall be accompanied at all times by the Training Agency Operator. Any non-compliance, non-conformities, deviations, and

Section 50. Inspection Report. The Inspection/Re-Inspection Checklist and Inspection Report shall be one of the bases for the granting of LTO-PSTA by Chief, PNP through Chief, SOSIA.

Section 51. Issuance of LTO-PSTA. Any application for new/renewal of LTO shall be approved upon satisfactory compliance with inspection requirements and the corresponding LTO-PSTA signed by the Chief, PNP through Chief, SOSIA shall be issued. Date of LTO validity shall be based on the actual date of release of the LTO.

Section 52. Administrative Inspection. Administrative Inspection shall be conducted prior to the renewal application of LTO. The administration inspection may be conducted sixty days, three months, or four months prior to the renewal application, subject to the request of the Applicant.

Section 53. Issuance of Letter of Authority. The Chief, PNP through Chief, SOSIA shall issue the appropriate Letter of Authority upon approval based on satisfactory compliance with the training inspection requirements.

Section 54. Submission of Inspection Report and Recommendation. The Training Inspection Team shall submit the Training Inspection Report and its recommendation to the Chief, PNP through Chief, SOSIA within 72 hours after the activity.

Section 55. Issuance of Letter Order for Training Inspection. Chief, SOSIA or his authorized representative shall issue the appropriate Letter Order designating a Training Inspection Team and its members.

Section 56. Conduct of Training Inspection. The Training Inspection Team shall inspect the following:

1. Training Schedule;
2. Appropriate facilities (e.g. shooting range for marksmanship/gun safety seminar, etc.);
3. Appropriate equipment; and
4. Appropriate training aids.

RULE 19

CATEGORIES OF PRIVATE SECURITY TRAINING

Section 57. Pre-Licensing Training Programs. Include all training and/or academic programs and courses which objective is to indoctrinate the individual with the skills

and future individual and/or collective exercise of profession. These include mandated periodic in-service training to be initiated by employer-security agencies which is further a prerequisite for the renewal of individual professional security licenses. These include but are not limited to the periodic Re-Training Course, Security Supervisory Course, and Security Supervisor Development Course and determined by the SSTD and approved by Chief, SOSIA.

Section 59. Specialized Training Programs. Include programs and courses other than those described in other training categories which are designed to develop previously-gained skills and knowledge, designed to augment or expand current skills and knowledge, and/or designed to develop current skills and knowledge to suit identified future applications. These include but are not limited to such courses as the Intelligence/Investigator Training Course, Crisis Management Course, Personal/VIP Security Training Course, Armored Car Crew Training Course, Bank Security Training Course, and Aviation Security Specialist Course, First Responder Training, Bomb Identification/Awareness and other emerging relevant courses as determined by the SSTD and approved by Chief, SOSIA.

Section 60. Other Trainings. Clients of the PSA may require other trainings and

or private training institutions duly accredited by the government to provide such training education to private security professionals, shall develop ladderized training and education which include security guard courses, specialized security guard courses, security officers training courses, detective training courses, and protection agent courses.

It shall also include enhancement trainings, such as but not limited to, supervisory trainings, personal upliftment, and other specialized trainings to place the security professional a level up from his/her current position. It shall also refer to the conduct of Private Security Training, provision of the physical facilities and installation necessary in the conduct thereof, and the provision of the appropriate management, administrative, and instructor/training staffs therefore, the actual performance and/or exercise of which requires the appropriate permit and/or authority as herein provided.

Section 70. Eligibility Requirements for Promotion to Higher Private Security Profession Category. There shall be an eligibility examination to be administered by SOSIA through the SSTB for security professionals who opt to be promoted to the next

a specific training course required for specific LESP-Security Personnel category. The SSTB shall design and develop a specific Program of Instruction (POI) for each course, subject to the approval of Chief, SOSIA.

Section 78. Submission of Certificate of Completion of the Required Pre-Licensing Course. All applicants for specific category of LESP-Security Personnel shall submit a Certificate of Completion of the required pre-licensing course as additional requirement for issuance of license. SOSIA may also require additional requirements provided that the same are essential, required, and necessary in the exercise of specialized security services.

RULE 26

ADDITIONAL QUALIFICATIONS AND DOCUMENTARY REQUIREMENTS FOR ISSUANCE OF LESP TO SPECIFIC CATEGORY OF SECURITY PROFESSION

Section 79. Security Watchmen. The following are the additional qualifications and documentary requirements for LESP-Security Watchmen:

Qualifications	Documentary Requirements
1. Must be a graduate of high school from any DepEd recognized secondary school whether public or private; and 2. Must have finished the Pre-licensing Training Course (PLTC).	1. High School Diploma or its equivalent; and 2. Certificate of Completion of the required course.

Section 80. Security Hardware and System Designers and Planners. The following are the additional qualifications and documentary requirements for LESP-Security Hardware and Systems Supervisor:

Qualifications	Documentary Requirements
1. Must be a graduate of high school	1. High School Diploma or its

private; and 2. Must have finished K9 Handler Course.	
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Section 82. Security Guard. The following are the additional qualifications and documentary requirements for LESP-Standard Security Guard (Armed):

Qualifications	Documentary Requirements
1. Must be at least 21 years old; 2. Must be a graduate of high school from any DepEd recognized secondary school whether public or private; and 3. Must have finished the PLTC.	1. Birth Certificate issued by PSA; 2. High School Diploma or its equivalent; and 3. PLTC Certificate (original or authenticated xerox copy).

Section 83. Banks and Armored Guard. The following are the additional qualifications and documentary requirements for LESP-Banks and Financial Institutions Guard:

Qualifications	Documentary Requirements
1. Must be at least 21 years old; 2. Must be a graduate of high school from any DepEd recognized secondary school whether public or private; and 3. Must have finished Banks and Financial Institutions Guard Course.	1. Birth Certificate issued by PSA; 2. High School Diploma or its equivalent; and 3. Certificate of Completion of the required course.

Section 84. Protection Agent. The following are the additional qualifications and documentary requirements for LESP- Personal Security Escort/ Protection Agent:

Qualifications	Documentary Requirements
1. Must be at least 21 years old; 2. Must be at least a graduate of high school from any DepEd recognized	1. Birth Certificate issued by PSA; 2. High School Diploma or its equivalent; and

Qualifications	Documentary Requirements
1. Must be at least 21 years old; 2. Must be a degree holder; and 3. Must have finished Private Investigator/Private Detective/ Inquiry Agent Course.	1. Birth Certificate issued by PSA; 2. College Diploma and TOR; and 3. Certificate of Completion of the required training.

Section 86. Security Officer. The following are the additional qualifications and documentary requirements for LESP- Security Officer:

Qualifications	Documentary Requirements
1. Must be at least 25 years old; 2. Must be at least a graduate of high school from any DepEd recognized secondary school whether public or private; 3. Must have at least five years of experience in the field of basic security profession; and 4. Must have finished Basic Security Supervisory Course.	1. Birth Certificate issued by PSA; 2. High school Diploma or its equivalent; 3. Certificate of Employment specifying therein the length of experience; and 4. Certificate of Completion of the required training.

Section 87. Security Consultant. The following are the additional qualifications and documentary requirements for LESP- Security Consultant:

Qualifications	Documentary Requirements
1. Must be at least 25 years old; 2. Master's degree holder and two years of experience in security industry or bachelor degree holder and 8-year experience in the security industry; and 3. Must have finished Security Consultant Course.	1. Birth Certificate issued by PSA; 2. Masteral Degree Diploma or College Diploma and TOR or its equivalent; 3. Certificate of Experience in the field of security industry; and 4. Certificate of Completion of the required training.

3. Must have finished Security Manager Course.

3. Certificate of Completion of the required training.

Section 89. Additional Qualifications and Documentary Requirements for Issuance of LESP to CGF Personnel and GSF Personnel. The requirements for granting LESP to Company Guard Force Personnel and Government Security Force personnel shall be the same as required in the different categories of security profession in the preceding sections; except that GSF personnel shall submit the following additional requirements:

1. Must be an employee of GSF with valid LTO; and
2. Plantilla position (for Armed Security Personnel) or Contract of (Oath of Office) Service or any type of personal service contract with GSF.

RULE 27

IN-SERVICE ENHANCEMENT TRAININGS FOR PRIVATE SECURITY PROFESSIONALS

Section 90. Period for PSP to Undergo In-Service Enhancement Training. All PSPs shall undergo In-Service Enhancement Training during the 5-year validity of their LESP under all categories which will be coursed through their employer within sixty (60) days before the specified birthdate from the issuance of the license.

Section 91. Submission of Report of In-Service Enhancement Training. The PSA, CGF, and GSF concerned shall submit to SOSIA the In-Service Enhancement Training undergone by their hired security professionals within 60 days upon receipt of the report that they have undergone the same. The periodic report to be submitted to SOSIA shall be notarized and shall contain the following information:

- 1) Name of Security Personnel;
- 2) Validity, Type, and Category of LESP;
- 3) Birthdate of licensee; and

of the PNP so require or when specific provisions of this IRR have been violated;

- 8) A PA shall wear authorized uniform and counter sign pins pursuant to this IRR; and
- 9) No PAs shall be utilized to secure any establishments such as clubs, buildings, or any religious or educational institutions or as an employee in the Protectee's business establishments.

Section 101. Issuance of Special Duty Detail Order (SDDO). The authority to issue SDDO with validity of thirty (30) days subject to reissuance shall be the D, PSPG.

Section 102. Limitation of LESP Categories. Any Private Security Professional with LESP may be employed by CGF and GSF, except for the Personal Security Escort/Protection Agent.

Section 103. Implementation of Additional Guidelines. The PSPG shall issue additional guidelines to ensure the effective and efficient employment and deployment of PAs.

RULE 29

CONVERSION OF LICENSE TO EXERCISE SECURITY PROFESSION

Section 104. LESP for Private Security Professionals. No person shall act as or engage in, the practice, service, business, occupation, or calling security profession without a valid LESP issued by the Chief, PNP through Chief, SOSIA.

Section 105. LESP Conversion from PSA Personnel to GSF personnel. A PSP with LESP classification under PSA personnel and was hired by a GSF shall convert his/her LESP from PSA personnel to GSF personnel subject to additional qualifications and documentary requirements as indicated in the last preceding section and upon payment of appropriate fees.

Section 106. Period of LESP Conversion of PSP to GSF Classification. The period of LESP conversion shall be within thirty (30) days after the date of hiring by a GSF: Provided that, late conversion fee shall be imposed if not complied.

Section 107. Period of Validity in the LESP Conversion of PSP to GSF Classification. LESP's under PSA personnel classification that are not appropriately converted shall be automatically cancelled.

Section 108. LESP Categories Not Allowed under CGF personnel and GSF Classification. Any LESP may be processed under the CGF personnel and GSF

Provided that, the security personnel is in possession of a valid SDDO indicating the period and route of the security escort service. Provided further, that the security personnel are in possession of either a PA-LESP and/or AV-LESP.

Section 117. Main Offices. All PSA, CGF, and GSF shall maintain a main office in their registered addresses.

Section 118. Branch Offices. Branch offices may be established and maintained in other provinces/cities where the PSA, CGF, GSF has deployed security personnel: Provided that, the security service is covered by a valid Security Service Agreement/ Contract and appropriate Duty Detail Order (DDO).

Section 119. Non-Base Operations. PSA operating in regions outside its main office shall be required to register online with SOSIA. Provided that, pending the operationalization of the Online System, PSA shall be required to register with the nearest RCSU and shall submit an authenticated machine copy of the following documents:

1. List of FAs;
2. List of security personnel with valid LESP's to be deployed; and
3. Duty Detail Order.

Section 120. Expired LTOPF and/or Firearm Registration. Expired Juridical LTOPF and/or Firearms Registration shall not be a bar for filing of application for LTO renewal.

RULE 32 ORGANIZATIONAL STRUCTURE OF PSA, CGF, AND GSF

Section 121. Private Security Agencies. All PSAs shall conform to the organizational structure, personnel, equipment, trainings, and uniforms as provided in this IRR.

Section 122. Company Guard Force. All CGFs shall be organized to conform substantially to the organizational structure prescribed for PSAs.

Section 123. Government Security Force. All GSFs shall be organized to conform to the organizational structure of the said government firm agency but not contrary to the organizational structure as prescribed for GSEs: Provided that, security personnel

and CGFs. A PSA and CGF shall only be allowed to acquire and possess small arms, specifically handguns and shotguns, but shall not exceed one (1) firearm for each private security professional (PSP) in its employ, to the exclusion of unarmed PSP; Provided, that rifles, categorized as small arms by the FEO Classification Board, may be acquired and possessed by a PSA and CGF in instances determined and approved by the Director, CSG.

Section 147. Instances when Rifles may be allowed for PSAs and CGFs. The following are the instances when rifles as provided under the preceding section, may be allowed for PSAs and CGFs:

1. Mine site deployment;
2. Power plant deployment;
3. Critical infrastructures, vital installations;
4. Escorting and securing large amounts of cash or valuables;
5. Upsurge of lawlessness and criminality as determined by the PNP; and
6. Other facilities which, by the nature of their business, personalities and security conditions in the area of deployment, merit the deployment of the said arms.

Section 148. Allowable Firearms for PSAs and CGFs. A PSA and CGF shall only be allowed to acquire and possess the following small arms: revolver or pistol, Caliber .38, .22, .25, 9mm, and shotgun.

Section 149. Restriction to Possess Military-Type Weapons/Light Weapons. A PSA/CGF/GSF is not allowed to possess high caliber firearms considered as military-type weapons such as M16, M14, cal .30 carbine, M1 Garand, and other rifles and special weapons with bores bigger than cal .22, to include pistols and revolvers with bores bigger than cal .38 such as cal .40, cal .41, cal .44, cal .45, cal .50, except cal .22 centerfire magnum and cal .357 and other pistols with bores smaller than cal .38 but with firing characteristics of full automatic burst and three-round burst.

Section 150. Quantity Limitations on PSTAs. For PSTA, the number of firearms shall be limited to the instructional or training requirements of the training agency as

Section 152. Permit to Transport Firearms and Ammunition. PSTA, PSA, CGF, and GSF shall secure a Permit to Transport Firearms and Ammunition from FEO or RCSU prior to its movement or transportation.

Section 153. Validity Period of PTT. It shall indicate the validity period as appropriate to the distance, location, and circumstances of the transportation activity.

Section 154. Carrying and Bearing of FAs by PSAs and CGFs. Carrying and use of firearms by PSPs of PSA, GSF, and CGF shall only be allowed during their tour of duty, in proper uniform, and when covered by a valid Duty Detail Order (DDO).

Section 155. Duty Detail Order (DDO). PSA/CGF/GSF detailing their security personnel on duty under the circumstances mentioned in the preceding section or while escorting big amount of cash or valuable outside its jurisdiction or area of operations, shall issue an appropriate duty detail order to the private security personnel concerned under the conditions as specified in Section 155 of this IRR.

Section 156. Duty Detail Order (DDO) Necessary. A DDO shall be issued by the PSA and CGF indicating the name of the PSP, the firearm description, the specific duration and location of the posting or assignment, the authorized bonded firearm custodian, and such other applicable terms and conditions deemed necessary and appropriate.

1. DDOs for the purpose of transporting agency licensed firearms from agency vault/office to post and back for posting, for routine rotation, replacement of firearms or for conduction service duties, shall be issued for not more than a duration of twenty-four (24) hours;
2. DDOs for the purpose of post duties not requiring transport of firearms outside of the physical compound or property of a client or client establishment/firm shall be issued for not more than a 30-day duration;
3. Transport of firearm other than those covered in paragraphs 1 and 2 of this section, shall require the appropriate transport permit issued by the FEO or RCSUs; and
4. All DDOs shall indicate the following:
 - a. Name, address, and contact number of agencies;
 - b. Serial number and date of DDO;
 - c. Complete name and designation of grantee;

PSTA, carrying and use of firearms shall only be done during instructional demonstration and practical exercises within the premises of the classroom or as may be appropriate under the circumstances in relation to Off-site training.

Section 158. Carrying and Use of FAs for GSFs. For appointed personnel and employees of GSFs, carrying and use of firearms shall only be authorized during their tour of duty, in prescribed uniform, within the premises of the government office or agency and covered by Short Certificate of Registration (SCR) issued by the FEO; Provided that, GSFs that have issued Mission Orders or other types of documents to its PSPs shall be given a period of sixty (60) days after the effectivity of this IRR for its conversion to SCR.

Section 159. Carrying and Bearing of FAs by Personal Security Escorts or Protection Agents. In the case of PSA providing Personal Security Escorts or Protection Agents, only firearms acquired, possessed, and registered under the name

Section 171. Inspection Report. A copy of the Inspection Report shall be provided to the licensed PSTA, PSA, CGF, and GSF within five (5) working days from the date of inspection. In case of adverse findings, the PSTA, PSA, CGF, and GSF shall be given a non-extendable period of ten (10) working days from receipt of the report to comply.

Section 172. Non-Compliance on Findings of Inspection. In case of non-compliance with the findings and recommendations of the Inspection Team within the given period, denial of the application or suspension of the LTO and/or LTOPF shall be undertaken, after due process.

Section 173. Submission of Reports. The Chief, PNP or his authorized representative shall require the submission of monthly, quarterly, and/or annual reports, as the case may be, pertaining to the inventory of firearms and ammunition from the licensed PSTA, PSA, CGF, and GSF.

RULE 42 CONFISCATION OF FIREARMS

Section 174. Grounds for Confiscation of Firearms. Firearms owned and possessed by the licensed PSTA, PSA, CGF, and GSF may be confiscated in any of the following instances:

1. Expired LTOPFs or no LTOPF;
2. Expired or unregistered firearms; and
3. Firearms with tampered, altered or obliterated Serial Numbers.

Section 175. Other instances for Confiscation of Firearms. Other than the grounds provided in the preceding section, any member of law enforcement agency, duly authorized by proper authority, may confiscate the firearm of a PSP and issue appropriate receipt thereof under the following circumstances:

1. When the firearm is about to be used in the commission of a crime;
2. When the firearm is actually being used in the commission of crime;
3. When the firearm has just been used in the commission of a crime;
4. When the firearm being carried by the security guard is unlicensed or a firearm is not authorized by law and regulation for his/her use;
5. When the confiscation of the firearm is directed by the order of the court:

3. Wooden area; and
4. Any outdoor area not covered above.

Training aids will be placed at the discretion of the evaluator and can be placed anywhere from a minimum of one (1) foot below surface level to a maximum of eight (8) feet above surface level.

Section 187. Aircraft or Watercraft, Rail Coach, and Bus Search. The search shall be at the discretion of the evaluator. It could be interior or exterior of the aircraft along with ground support equipment. All training aids shall be placed in a manner such that the EDD cannot retrieve the same.

Section 188. Evaluation. The K9 team evaluator will determine if the EDD team will be certified upon the completion of the test. The handler and EDD will be considered as a team that will be certified. If there is a change in the handler of the EDD, it will be considered a new team and has to be certified anew.

Section 189. Certification. For certification, the EDD team shall not miss more than one (1) training aid in all phases of testing. If the tested EDD team missed more than one (1) training aid, which is a FAILURE, then the team must RETEST in all phases. All tests will be done on PASS or FAIL basis. All training aids will be placed at least thirty (30) minutes prior to testing. If a training aid has to be moved to a new location, the previously used area must be excluded as a testing site. The following shall be observed:

- 1) Prior to the EDD team entering the test area, each handler shall inform the evaluator on the specific dog's alert and response to training aids and each indication to a training aid by the canine should be obvious to the evaluator. The evaluator shall, prior to each phase, brief the handler on the nature of each problem that will be encountered, such as boundaries, time, starting point, among others; and
- 2) A maximum time limit of twenty (20) minutes will be allotted for each phase of testing. The time will stop when the handler indicates that the search is complete or the time has expired. Conversation between the team that had already undergone the test and the other teams that will still undergo the test shall not be allowed while the testing is on progress. All training aids used in the test should preferably be of recent manufacture and placed in separate containers. It shall be the responsibility of the EDD team being tested to provide the training aids.

Section 190. Evaluation Certificate. Each evaluation certificate shall be valid for six (6) months only from date of the test. It should be noted that routine training must be conducted to maintain and enhance the team's capability.

once a year unless their employers provide the same free of charge.

Section 205. Manufacture/Tailoring. The SOSIA-accredited suppliers shall be primarily responsible and accountable for the manufacture and/or tailoring of the prescribed uniform for PSPs. SOSIA shall accredit manufacturers or tailors authorized to produce the prescribed uniform and other equipment complying with standards, guidelines and procedures set by the SUEB and approved by Chief, SOSIA.

RULE 49 EQUIPMENT REQUIREMENTS

Section 206. Agency-issued equipment subject to regulation by other government agencies. Any violation of laws, rules and regulations governing acquisition, possession, use and/or disposition of equipment subject to regulation of other National Government Agencies shall be reported immediately as a matter of inter-operability and inter-agency courtesy.

Section 207. Equipment of Security Personnel. The following are the standard equipment that shall be in the possession of a security guard/watchman while performing his/her duties:

1. Nightstick/baton;
2. Whistle;
3. Timepiece (synchronized);
4. Writing pen;
5. Notebook and duty checklist (electronic or not);
6. Flashlight;
7. First Aid Kit;
8. Service Firearms (as required); and
9. Handcuffs.

Section 208. Issuance of Equipment. The PSA, CGF, GSF, shall have the responsibility of ensuring the availability and issuance of the equipment to its posted personnel.

Section 209. Equipment Functionalities. PSAs shall be responsible for inspecting and ensuring the operational efficiency and functionality of agency-issued equipment and be responsible for keeping their PSPs acquainted with the proper usage of equipment.

Section 210. Special and Other Equipment. Apart from the standard equipment, other equipment may be issued to the PSPs as determined necessary following the

3. With at least five (5) gun ports with steel plate windows with locks. Materials to be used on the steel plate windows must be the same material with the armored plate of the vehicle;
4. With installed GPS; and
5. Such other specifications that the Board shall prescribe.

Section 220. Deployment and Use of Armored Vehicles. Armored vehicles shall be deployed and/or used to carry cash or valuable items and shall not be used to ferry bank employees/personnel.

Section 221. Movement of Armored Vehicles. The movement of armored vehicles shall be from point of origin to point of destination. Armored vehicle routes shall be limited to pass through main roads only and armored vehicles shall refrain from passing alternate routes from point of origin to point of destination. Any diversions of routes, accidents or similar incidents shall be reported immediately to nearest police station using any available and fastest means of communication. In situations that parking or stop over is unavoidable, it shall be limited to 5 minutes only.

Section 222. Ballistic Resistance Testing and Evaluation of Armored Vehicles/ Materials. The following policies and guidelines provided by SOSIA shall be complied:

1. No Private Armored Vehicle Provider application for License to Operate shall be issued without its armored vehicle fleet being subjected to and passing the Ballistic Resistance Testing and Evaluation (BRTE) and issued appropriate Board Resolution by the Armored Vehicle Testing and Evaluation Board (AVTEB) indicating pass rating;
2. No Private Armored Vehicle fleet shall be tested and evaluated by SOSIA BRTE unless the armored vehicles are registered with the LTO and covered by valid SOSIA CRI;
3. Should any of the armored vehicles selected for BRTE fail the tests, SOSIA shall immediately stop the ongoing test and shall not issue the required License to Operate to applicant unless it passes the BRTE Re-Evaluation to be requested by the applicant not earlier than one (1) week but not later than one (1) month after the failed test;
4. After the conduct of the BRTE, appropriate report on the findings and recommendation shall be submitted to Chief, SOSIA together with the AVTEB Resolution for his approval; and
5. The expenses to be incurred relative to the conduct of ballistic resistance testing and evaluation shall be shouldered exclusively by the applicant.

Chief, SCMD, SOSIA	Member
Representative from SOSIA Recognized and Accredited Armored Security Service Providers	Member
Representative from Armored Security Manufacturer	Member
Representative from SOSIA Recognized and Accredited PSA	Member
Assistant Chief, EMD, SOSIA	Head Secretariat

The AVTEB shall have the following functions and responsibilities:

1. Conduct Armored Vehicle Test and Evaluation to ensure that armored vehicles passed the standards;
2. Recommend to the Chief, PNP through Chief, SOSIA the issuance of LTO to applicant armored security service provider that passed the test and evaluation;
3. Pass policy and guidelines for the improvement of armored services in the country; and
4. Perform other functions related to armored vehicles concerns.

Section 224. Evaluation of Submitted Documents. The evaluating personnel of the Enforcement Management Division (EMD) shall check on the completeness, authenticity, and validity of all the submitted documents and conformity to standards.

Section 225. Payment. EMD shall issue an Order of Payment for Registration and

- the prejudice of the customers or clients and shall assist the government in its relentless drive against lawlessness and other forms of criminality;
7. They shall carry out their assigned duties as required by law to the best of their ability and shall safeguard the life and property of the establishment where they are assigned;
 8. They shall report for duty always in proper uniform and neat in their appearance and shall wear their accoutrements properly as a symbol of public trust and confidence, as an honest and trustworthy security professional;
 9. They shall keep their allegiance first to the government, to the public, to the agency where they are employed, and to the establishment they are assigned to serve with utmost dedication to the profession;
 10. They shall diligently and progressively familiarize/acquaint themselves with the rules and regulations laid down by their agency and those of the customers or clients;
 11. They shall at all times be courteous and respectful in the performance of their duties and responsibilities; and
 12. They shall learn by heart and strictly observe all the laws and regulations governing the exercise of their profession.

Section 236. Code of Conduct of Security Professionals. The following are the code of conduct to be followed and complied by security professionals:

1. They shall always be in proper uniform and shall carry with them at all times during their tour of duty their LESP and other requirements, equipment, and duty detail order with the authority to carry firearms when applicable;
2. They shall not use their LESP and other privileges if any, to the prejudice of the public, the client or customer, and their agency;
3. They shall not engage in any unnecessary conversation with anybody except in the discharge of their duties nor show any instance of laxity and shall at all times keep themselves alert during their tour of duty;
4. They shall refrain from reading newspapers, magazines, books, and other reading materials, use laptops, mobile phones, and other gadgets, and/or do or perform distracting activities while actually performing their duties;
5. They shall refrain from doing janitorial/utility works, parking attendant duties, issue tickets/collect fees, and other non-security functions;
6. They shall not drink any intoxicating liquor immediately before and during their tour of duty nor use any dangerous drugs.

establishments, where there exists or forthcoming contracted/contracting agency, they should conduct themselves and their deployed security professionals in a manner primarily not to be used against each other at the same time without compromising their respective contracts;

8. They shall endeavor to raise the standards of service in the security profession thru incentives and in-service training;
9. They shall establish an adequate library of books, magazines, and other publications on security subjects, materials, references, etc. in each PSA;
10. They shall always be truthful and accurate in reports required by SOSIA and/or other competent authorities and be prompt in the submission of the same;
11. They shall not, under any circumstances, employ for guard duty any person without a valid LESP duly issued by the Chief, SOSIA; and
12. They shall, at all times, exercise vigilance and be prepared to prevent the use of their security professionals or the agency in activities inimical to the state or national security. When activities of this nature come to their attention, they shall as a matter of duty render appropriate reports to the PNP.

Section 239. Ethical Standards of Security Services Operator. Security Services Operator shall at all times uphold the integrity and trust of the security profession and shall:

1. Abide by the laws of the land and endeavor to fulfil their professional duties in accordance with the highest moral principles, always conforming to the precepts of truth, fairness, and justice;

loiter without proper authority.

Section 245. Duty to Assist Law Enforcers. Any security guard shall be duty bound to assist law enforcers/law enforcement officers in the pursuit of their duty, when circumstances require, provided it is within the territorial jurisdiction of his/her area of responsibility.

Section 246. PNP Deputation of Security Professionals during Exigencies. In cases of emergency or in times of disaster or calamities, the Chief, PNP or his authorized representative, may deputize any security professional to assist the PNP in the conduct of activities including but not limited to search and rescue operation, crowd control, disaster relief and rehabilitation, among others.

RULE 54

DEPLOYMENT OF PSPs IN CONFLICT OF CLAIMS SITUATIONS

Section 247. Conflict of Claims. A conflict of claim situation arises when a subsequent PSA enters into a contract and/or deploys security personnel on a property that has an incumbent PSA. Therefore, no subsequent PSA shall enter into a contract and/or deploy security personnel on a property that has existing security personnel posted by an incumbent PSA. Guidelines and Procedures on Properties with existing Conflict of Claims shall be prescribed by the SLRB subject to the approval of Chief, SOSIA.

Section 248. Power of SOSIA to issue Status Quo Ante Order. SOSIA has the authority to issue Status Quo Ante Order to PSPs and PSAs as may be determined by Chief, SOSIA.

Section 249. Power of SOSIA to confiscate Firearms of PSA Deployed in Conflict of Claims Situation albeit valid Juridical LTOPF and Firearms. Guidelines and procedures that give authority to SOSIA/RCSUs to confiscate, the service firearms of PSPs and PSAs in any property or establishments of their clients under existing Security Service Agreements (SSA) or any other kind of arrangement and is the subject of conflict of claim situation, shall be formulated by SOSIA, to ensure the preservation and maintenance of peace and order and the protection of lives thereat.

RULE 55

LIMITATIONS ON DUTIES AND RESPONSIBILITIES AND PROHIBITED ACTS OF SECURITY PROFESSIONALS

Section 250. Private Security Personnel (PSP) on Fixed Post. PSPs deployed to a

- serve as bodyguard or personal security escort of any person;
- 2. The services rendered are confined to the premises and/or property being secured;
- 3. The private security personnel on post shall not wear other attire aside from the prescribed uniform;
- 4. Private security personnel performing as security aides, or back-up/support of guards, or operating security equipment, hardware and software, less-lethal weapons and/or electronic security devices and systems shall not bear firearms; and
- 5. Any other limitations/prohibited acts similar or analogous to the foregoing.

Section 251. Private Security Personnel Conduction Service. Private security personnel shall perform personal service to watch or secure movable private or public property in transit such as but not limited to seafaring/ocean vessels, aircrafts, land-locked vehicles, or valuables/cash in transit using any means of transportation except armored vehicles, provided that:

- 1. No private security personnel performing conduction service shall act or serve as bodyguard or personal security escort of any person; and

management. These hostile acts include breaking of the strike; smuggling in of scabs (strike breakers) and preventing strikers from conducting peaceful pickets;

- g. Private security personnel shall not enforce the provisions of the Revised Labor Code pertaining to strikers/lockouts; and
- h. Private security personnel on duty must at all times be in complete uniform with their names and agency's name shown on their shirts above the breast pockets.

Section 258. Chief Security Officer. Policies to be undertaken by the Chief Security Officers during Strikes/Lockouts:

- a. Upon declaration of a strike, or upon the establishment of a picket line or mass action at the vicinity of a firm/establishment, the Detachment Commander or the Chief Security Officer of the PSA/CGF/GSF shall immediately collect all firearms of the guards in direct or about to have a direct confrontation with the crowd and deposit these firearms in their vault; or reissue these firearms to other private security personnel not issued firearms but assigned to and performing guard duties away from and not visible to strikers or the crowd as may be required by the circumstances.

inspection shall be provided in supplemental policies, guidelines, and procedures to be prescribed by the SLRB subject to the approval of the Chief, SOSIA.

Section 273. Administrative Inspection-related Procedures. The following are the procedures to be followed on administrative inspection-related infractions by PSAs, CGFs, GSFs, and PSTAs:

1. The notice of appearance within seven (7) days as indicated in the acknowledged Violation Ticket Report (VTR) issued by the inspecting team shall serve as first formal notice to the PSAs, CGFs, GSFs, and PSTAs;
2. In compliance with procedural due process, PSAs, CGFs, GSFs, and PSTAs with pending violations shall be officially notified either through registered mail or personal service/notice. Respondents may be categorized as:
 - a) Acknowledging respondent;
 - b) No-response respondent:
 - (1) In the event that the PSA concerned shall not comply with the first notice of appearance, the Inspection Section shall send a second notice of appearance and direct the owner of the said PSA or his/her representatives to appear within seven (7) days upon receipt of the notice;
 - (2) If the PSA concerned failed to comply with the second

under oath before a notary public, to apprise the respondent of the nature of the charge against him/her to be able to prepare for his/her defense.

Section 275. Contents of the Complaint. The complaint shall contain:

1. The full name, address, contact number, and current Private Security Agency (if applicable) of the complainant;
2. The full name, address, contact number, and current Private Security Agency (if applicable) of the respondent as well as the position and office of employment;
3. Specification of the complaint and allegations; and
4. Narration of the material facts which show specifically the act/s or omission/s attributable to the particular respondent/s constituting the offense allegedly committed, the place, date, and time of commission of the offense.

Section 276. Who may Initiate. The following persons may initiate a complaint:

1. If the aggrieved party is a sole proprietorship or One Person Corporation, complainant shall be the proprietor/owner or the President, respectively, or its representative authorized through a Special Power of Attorney (SPA);
2. If the aggrieved party is a juridical entity (e.g. corporation, NGAs, GOCCs, cooperatives, NPSAs, etc.) except for One Person Corporation, complainant shall be a natural person authorized by the Board through a valid Board Resolution with Secretary's Certificate;
3. If the aggrieved party is a private citizen, the complainant shall be the private citizen himself/herself; or
4. If the violation was found as a result of inspection, complainant shall be the Team Leader of the Inspection Team through an After-Inspection Report showing the act/s or omission/s allegedly committed.

Section 277. How Initiated. The complaint shall be initiated in the following manner:

1. A complaint shall be initiated upon submission of a notarized complaint affidavit, accompanied by affidavit/s of witness/es, and other evidence in support thereof. The complaint shall be accompanied by a certificate of non-forum shopping duly subscribed and sworn to by the complainant. If the complaint is not accompanied by a certificate of non-forum shopping, the complainant shall be required to submit the same within seven (7) working days from notice; otherwise, the complaint may be dismissed; and
2. Complaint is also initiated through the submission of an After-Investigation Report accompanied by evidence in support thereof.

Section 278. Grounds for Filing an Administrative Action Against a Respondent.

minutes of proceedings, to include matters clarified and attach the same with the records of the case;

4. The PSA, PSTA, CGF, GSF, or the PSP (respondent) complained of may then submit his/her comment/counter-affidavit within five (5) days after the appearance and clarificatory meeting was held, provided however, that failure of the respondent to submit his/her comment/counter-affidavit shall be construed as a waiver on his/her part. No motion for extension of time to submit comment/counter-affidavit or any other dilatory motions shall be allowed except upon meritorious causes and the filing thereof does not interrupt the reglementary period for the submission of the comment/counter-affidavit;
5. Any recommendation by the investigator on case upon endorsement of Chief, RCSU concerned or Chief, EMD SOSIA shall be approved/disapproved by the Chief, SOSIA;
6. In the event that the investigator recommended for the closing/dropping of the complaint, the complainant may file a motion for re-investigation within five (5) days from receipt of the report. The Chief, SOSIA shall be the approving authority for all motions. Only one (1) motion for re-investigation shall be allowed, which shall be resolved within fifteen (15) working days from receipt thereof;
7. If after the Preliminary Evaluation, a probable cause is found to exist, the Case/Investigating Officer shall recommend in his/her Preliminary Evaluation Report, the conduct of summary hearing of the case. The Chief, RCSU concerned or the Chief, EMD, SOSIA as the case may be, shall designate a PCO to act as the Summary Hearing Officer; and
8. Any recommendation by the investigator on case upon endorsement of Chief, RCSU concerned or Chief, EMD SOSIA shall be approved/disapproved by the Chief, SOSIA.

Section 289. Docket Entries. The formal charge sheet must contain the appropriate docket entries and must be duly recorded in the official records. The office tasked by the regulatory office to maintain the records of the administrative case shall enter the case into its official docket by stamping on the face of the formal charge the time and date of receipt and assigned case number. The case shall be formally filed and pending upon receipt and entry of the same in the official docket of the Regulatory Office.

RULE 62 INVESTIGATION OF CASES

Section 292. Nature of Proceedings. The investigation and hearing before this regulatory office shall be summary in nature and shall not strictly adhere to the technical rules of procedure and evidence applicable in judicial proceedings. The provisions of the Rules and Regulations as well as the Revised Rules of Court shall be suppletory.

Section 293. Venue. Any complaint shall be filed with the Complaint and Investigation Detection Section, SOSIA, CSG and/or RCSU for acts or omissions committed. In all other instances, the complaint may be filed with the RCSU having territorial jurisdiction where the acts or omissions were committed or with the RCSU where the complainant works or resides, or where the respondent's principal office is located, at the option of the complainant.

Section 294. Role of Recognized Security Associations. Except for cases equally cognizable by courts or other disciplinary agencies or tribunals, all complaints of PSA against another, PSP against a PSA or vice-versa shall be lodged before the recognized security associations for any arbitration, mediate any dispute that shall arise between their members and/or Private Security Professional (PSP) under the employ (or formerly employed by the member of the Association at the discretion of the complainant). The Security Association shall put into writing the result of the arbitration whether there was no conciliation or settlement has been reached as certified by the secretary of the organization or unless settlement has been repudiated by the parties.

Section 295. Preliminary Evaluation Report. Within Ten (10) working days from the termination of the preliminary evaluation, the investigating officer shall submit a report with recommendation to the Chief, EMD, SOSIA or Chief, RCSU concerned for approval or disapproval of Chief, SOSIA.

Section 296. Action on the Complaint. All complaints for Preliminary Evaluation shall be stamped on its face with the date and time of its receipt and assigned reference numbers, and shall be recorded in a docket book exclusively for such cases that shall contain in addition to the data mentioned in Section 288: the name of the parties, the offense charged, the hearing officer to whom the case was assigned. the

- (2) or more Private Security Agencies;
- 5. Court Order from a competent court that has jurisdiction over the case; and
- 6. Other justifiable orders emanating from the Chief, PNP, D, CSG and Chief, SOSIA.

Section 298. Prohibition Against Forum Shopping or Multiple Filing of Complaints. To avoid multiplicity of cases for the same cause of action, the complainant shall certify under oath in his/her pleading, or in a sworn certification annexed thereto and simultaneously filed therewith, to the truth of the following facts and undertaking:

- a. That the complainant has not filed or commenced any complaint involving the same cause of action in any other regulatory office (SOSIA or RCSUs);
- b. That to the best of the complainant's knowledge, no such complaint is pending before any other regulatory office (SOSIA or RCSUs);
- c. That if there is any such complaint which is either pending or may have been terminated, the complainant must state the status thereof; and
- d. That if the complainant should thereafter learn that a similar action or proceeding has been filed or is pending before any other regulatory office (SOSIA or RCSUs), the complainant shall report such facts within five

Section 309. Clarificatory Hearing. Within five (5) working days from receipt of the position paper of the parties or after the expiration of the period to file the same, a party may move, or the SHO may issue an order, for the conduct of a one-time clarificatory hearing where the parties shall be afforded the opportunity to be present and submit written clarificatory questions to the Summary Hearing Officer who will determine whether or not the questions are necessary and relevant to the fact in issue.

Section 310. Right to Counsel. Parties have the right to avail of counsel. If the parties at the start of the proceedings appear without counsel, they shall be informed of the right to avail of one if they so desire. However, the hearings shall proceed as scheduled even in the absence of counsel. If a party is not represented by counsel, the SHO shall mark the exhibits presented during the pre-hearing conference and may propound clarificatory questions, if necessary. Parties may be assisted by a counsel in the preparation and submission of their pleadings and during the clarificatory hearing.

Section 311. Postponement. Postponement of hearings should be discouraged and shall be allowed only in meritorious cases, such as illness of a party or his/her counsel and/or other similar unavoidable causes. A request for postponement on the ground of illness shall be supported by a duly sworn medical certificate. Regardless of the ground invoked, not more than two (2) postponements shall be allowed for either of the parties. Thereafter, the hearing shall proceed as scheduled.

Section 312. Effect of Forum Shopping. Violation of the prohibition against forum shopping shall be a ground for the dismissal of the case motu proprio or upon motion of the respondent.

Section 313. Effect of Absence/Non-Appearance of Complainant. If the complainant fails or refuses to appear during the two (2) consecutive scheduled hearings, despite due notice, it shall be a sufficient ground to drop the complaint for failure to prosecute where the culpability of the respondent could not be established or proven without the testimony of the complainant. However, before dropping the complaint, the designated hearing officer shall exert best efforts to locate the complainant and his/her witnesses and to inquire into the reason/s for their failure to prosecute the case. In cases where the culpability of the respondent can be established by evidence other than the testimony of the complainant, non-appearance of the latter shall not be a ground to terminate the proceedings.

Section 314. Effect of Desistance of the Complainant. If the complainant desists prior to the presentation of the evidence by the prosecution, the case shall be

Section 319. Contents of Resolution. Resolutions shall be clear and concise; and shall include the following:

- a. Facts of the case;
- b. Issues involved;
- c. Applicable laws, rules and regulations;
- d. Findings and conclusions; and
- e. Recommendations (Disposition thereof).

Section 320. Contents of Decision. The decision shall contain the full name of the parties, the name of PSP, PSA, PSTA, CGF or GSF, the offense charged, a brief statement of the material relevant facts, the findings established by the evidence on record, the conclusion, the applicable laws, rules and regulations, jurisprudence, disposition of the regulatory office, and other pertinent details relevant to the case.

Section 321. Service of Decision. The Decision shall be served either personally, by registered mail or any private courier at the complainant's and respondent's place of business or at his/her last known address within three (3) working days from approval thereof. In all cases, proof of such service shall be attached to the records of the case for purposes of determining jurisdiction in case of appeal.

Section 322. Respondent Found Liable for an Offense Separate and Distinct from that which he was Charged. A respondent may be found culpable of an offense separate and distinct from that which he was charged: Provided that the acts constituting the offense of which he was found culpable were alleged in the complaint and the respondent was given the opportunity to answer.

Section 323. Motion for Reconsideration. The party adversely affected may file a motion for reconsideration from the decision rendered within ten (10) working days from receipt of a copy of the decision on the following grounds:

- a. Newly discovered evidence which, if presented, would materially affect the decision rendered;
- b. Errors of law or irregularities have been committed prejudicial to the substantial rights and interest of the movant; and
- c. The decision is not supported by the evidence on record.

The filing of a timely motion for reconsideration shall stay the execution of the decision sought to be reconsidered. Only one (1) motion for reconsideration shall be allowed and the same shall be considered and decided by the regulatory office within fifteen (15) working days from receipt thereof.

Section 324. Finality of Decision. The Decision rendered by the regulatory office (RCSIA) shall be final and executory if no appeal or motion for reconsideration is filed

ascertain the facts of the case, including ocular inspections and testimony of expert witnesses.

Section 326. Service of Notices and Summons. The following shall be observed in the service of notices and summons:

- a. All notices and summons shall be served to the respondent in person by the process server or by registered mail or by private courier at his/her last known registered business address or last known residential address as stated in the records; and
- b. If personal service is not possible or when the respondent refuses to receive the notices or summons, service may be made by leaving a copy of the same with the Administrative Officer or employee at his/her registered business address or with any responsible member of the respondent's household at his/her last known address provided that if the latter also refuses to receive the summons or notices, service may be made to the official address of the barangay office in that area.

In all instances, a Return of Service by the server (proof of service) shall be made within twenty-four (24) hours from service to the private complainant and respondent, either personally or registered mail or private courier.

RULE 65

FILING AND SERVICE OF PLEADINGS, PROCESSES, AND DECISIONS

Section 327. Filing of Pleadings. The filing of pleadings by the parties shall be made by presenting the original copies thereof to the regulatory office concerned or *authorized officer or by sending them by registered mail or private courier with proof that the other party was served with a copy.* The date and time of the receipt shall be indicated on the face of the original document and the receiving copies. In case the documents were sent by registered mail or private courier, the date and time of actual receipt shall be the time and date of receipt as stamped on the envelope which is required to be attached to the document as part of the record.

Section 328. Service of Subpoenas and Interlocutory Orders. Subpoenas and other interlocutory orders shall be served personally, provided however, that if the complainant and/or respondent is represented by counsel, service of orders to the counsel shall be deemed service to his/her client.

Section 329. Service of Final Orders/Decisions/Resolutions. Final orders, decisions or resolutions shall be docketed before its release by the regulatory office or appellate body and copies thereof shall be served upon the parties personally or by

- profession;
- 7. All acts prejudicial to good conduct, behavior, morals, and similar acts, pursuant to existing laws, rules and regulations; and
- 8. Other similar offenses.

Section 342. Less Grave Offenses. Less Grave Offenses shall include, but not be limited to:

1. Not having in possession his/her license to exercise profession, duty detail order, firearms license (when carrying firearms) and Certificate of Efficiency (CE) for K9 team while performing private security service;
2. Use of uniform not appropriate for one's position;
3. Violation of any of the 11 General Orders;
4. Illegal discharge of firearms;
5. Deliberate refusal to cooperate with the implementation of law enforcement activities;
6. Abusive behavior;
7. Being under the influence of liquor or any other intoxicating substance while on duty; and
8. Other similar offenses pursuant to existing laws, rules and regulations

Section 343. Grave Offenses. Grave Offenses shall include, but not be limited to:

1. Using uniform other than those prescribed under these rules;
2. Using personally owned or unlicensed firearm during tour of duty;
3. Allowing the use/lending of issued firearms to unauthorized persons;
4. Assisting, abetting or protecting criminals while on duty or during off duty;
5. Unauthorized access/disclosure of classified information to any person;
6. Refusal to provide information to authorized persons;
7. Illegal search;
8. Indiscriminate discharge of firearm;
9. Abuse or acting beyond the scope of authority;
10. Misrepresentation in the submission of documents for renewal of license;
11. Use of and/or employment of canine teams for purposes of committing threats, intimidation, coercion or any other crimes/offenses, including show of force;
12. Commission of crimes involving moral turpitude and other special laws; and
13. Other similar or analogous offenses pursuant to existing laws, rules and regulations.

Section 344. Sanctions and Fines for Offenses Committed by PSPs. Without prejudice to criminal prosecution, the following penalties may be imposed, after due

months suspension or a fine ranging from Five Hundred Pesos minimum to One Thousand Pesos maximum (PhP500.00-PhP1,000.00) or both; and

- c. For grave offenses. Suspension, Cancellation or Revocation of license as determined by the SLRB and subject to the approval of the C, SOSIA.

RULE 68

SANCTIONS AGAINST PSA, PSTA, and CGF

Section 345. Violations of PSAs, PSTAs, and CGFs. The authority of the Chief, PNP or his authorized representative to impose administrative penalties or cancel, suspend or not to renew the license of PSA, PSTA, or CGF shall be exercised in the following cases without prejudice to criminal prosecution:

A penalty of administrative fine shall be imposed upon any erring PSA, PSTA, or CGF in the amount of One Hundred Thousand Pesos (PhP100,000.00) for the first offense; Two Hundred Thousand Pesos (PhP200,000.00) for the second offense; and Three Hundred Thousand Pesos (PhP300,000.00) and cancellation of license to operate for the third offense without prejudice to the filing of appropriate criminal/civil action.

In case of fines, the erring PSA, PSTA, or CGF shall not be allowed to serve the questioned client. PSA Operators whose licenses have been suspended, cancelled or revoked under these Rules shall be subject to the guidelines prescribed by the SLRB and approved by the Chief, SOSIA.

Section 346. Classification of Offenses. Except in cases already specifically provided in these Rules, the following terms shall be construed to mean as indicated:

- a. Light Offenses committed by PSA/PSTA/CGF shall include, but not limited to:
 - 1) Late or failure to maintain and/or submit records/reports;
 - 2) Posting security personnel not covered by written contract; and
 - 3) Other similar offenses pursuant to existing laws, rules, and regulations.
- b. Less grave offenses committed by PSA/PSTA/CGF shall include but not limited to:
 - 1) Ordering its posted security guards to conduct illegal search;
 - 2) Posting unlicensed personnel for duty;
 - 3) Posting personnel not wearing the prescribed uniform; and

